



INDEPENDENT VENDOR AGREEMENT - FOOD KIOSK

This Agreement is made this [month, day, year] by and between the District Board of Trustees, Florida SouthWestern State College, Florida, hereinafter referred to as the "College" and [insert vendor's legal name including DBA, if applicable] hereinafter referred to as "Vendor."

RECITALS

WHEREAS, The College is a State College operated by the State College Board of Trustees under statutory authority and the rules of the State Board of Education with the primary mission and responsibility of responding to community needs for the post-secondary academic education and technical degree education;

WHEREAS, Vendor's business provides desirable concessionary [insert food items] at local events utilizing a self-contained concession stand and has held a business license with the State of Florida since [insert date] and has filed an annual financial report with the Florida Department of Revenue for each year of operations;

WHEREAS, the College desires to utilize the services of the Vendor, as an independent contractor, as described in section 1; and

WHEREAS, Vendor desires to so render such services according to the terms and conditions set forth in the Agreement.

OPERATIVE PROVISIONS

Manufacturing Climate Technology Equipment/Software Investment

Retool WNY, a Jamestown Board of Public Utilities led initiative, is designed to facilitate clean energy company formation or expansion, enhance regional workforce development, create jobs in the growing clean energy sector, and strengthen connections among clean energy manufacturers across the Western Southern Tier counties of Chautauqua, Cattaraugus, and Allegany.

As a part of the program there is funding of up to \$19,000 per company for a limited number of manufacturers to evaluate the potential and/or assist them in making direct investments in equipment/software to start or expand production of technologies and equipment utilized in the climate technology/clean energy sector.

This award is part of NYSEDA's "Accelerate the Southern Tier" program opportunity, which seeks to accelerate the formation and growth of early stage clean energy companies in the Southern Tier and continues development of the region to help foster growth of clean energy technology businesses.

Equipment/software investment plans will outline the equipment to be purchased, total capital investment, increase in jobs (if applicable), and an explanation of how the equipment/software will be utilized for climate technology/clean energy manufacturing. The MOU and investment plans shall define the obligations and expectations of the Contractor and the manufacturer and define the program specific milestones to be achieved by the manufacturer company. NYSEDA's Project Manager will review background information about the participant to ensure they qualify for the program prior to an MOU or equipment/software investment plan being executed.

Attached is a draft fillable MOU for your company to complete. Please return the signed MOU to me at editonto@jamestownbpu.com as soon as possible as the grant funds are limited and the timeline for funding will end



soon. Upon receipt we will review the MOU and provide any questions or feedback and obtain approval from NYSERDA. If approved, JBPU will complete the execution of the MOU. If the project has already commenced, we will need verification of the timeline.

We appreciate the opportunity to assist you and your business in our community.

Sincerely,

Ellen Ditonto
Business Development Coordinator

FLORIDA SOUTHWESTERN STATE COLLEGE

~~Manufacturing Climate Technology Equipment/Software Investment~~

~~Memorandum of Understanding~~

~~between~~

~~Company Name (Company) & Legal Address~~

~~and~~

~~Jamestown Board of Public Utilities (JBPU), 92 Steele St, PO BOX 700, Jamestown NY 14702~~

~~Dated Click or tap to enter a date.~~

WHEREAS, the JBPU has entered into an agreement as the lead agency with the New York State Energy Research and Development Authority (NYSERDA) numbered 154462 called Climate Technology Manufacturing in the Western Southern Tier for initiatives that facilitate the development, attraction, and growth of climate technology manufacturing companies in the Western Southern Tier (NYSERDA Agreement). The programs will leverage the region's early ecosystem development and climate technology business formation and acceleration success and will be aimed at helping current companies build and grow manufacturing and jobs in the climate technology sector as well as attracting high-potential climate technology companies to the region; and

WHEREAS the JBPU and the Company have agreed to collaborate as partners and create a business expansion and diversification project under the NYSEDA Agreement; and

WHEREAS Climate Technology is defined as: Innovation that supports decarbonization of the economy through hardware, software, technology-enabled services, data analytics, or processes that broadly reduce energy consumption, increase resource efficiency, reduce greenhouse gas emissions and/or enable the transition to a sustainable and decarbonized economy. For the purposes of this agreement, types of innovation for decarbonizing the economy may include development of new technologies, new methods of manufacturing and repair of climate technologies, retooling and development of equipment to produce products needed for climate technology implementation and production of other related climate technology equipment.

WHEREAS the Company Overview of your company and current products

NOW, THEREFORE, in consideration of the mutual promises, covenants and agreements contained herein interests described above, the parties agree as follows:

1. The College hereby contracts with Vendor, and the College and Vendor hereby agree that the Vendor shall provide **[please provide information here describing services that consultant will provide: who, what, where, when and how]**
2. Vendor and any persons employed by the Vendor for the performance of ~~to~~ work hereunder shall be independent contractors and not agents of the College. Any provisions in this Agreement that may appear to give the College the right to direct the Vendor as to details of doing work or to exercise a measure of control over the work mean that the Vendor shall follow the direction of the College as to end results of the work or services only.
3. Vendor will provide a 30% commission to College as payment for vendor space. Commission will be computed as gross sales minus taxes. Gross sales will be provided by Vendor at time of commission payment. It is acceptable for gross sales totals will be provided in good faith by Vendor without need for sales receipts.
4. Vendor will pay all sales taxes.



5. Vendor will maintain sales stand in a way that meets all health code statutes. Any violations or fines will be the sole responsibility of the Vendor.
6. Vendor will ensure that sales stand remains serviceable. Should sales stand need repairs, servicing, cleaning, or any other operational needs, these will be the sole responsibility of the Vendor.
7. College is not responsible for any damages to Vendor property.
8. Vendor may not expand product line outside of items stated herein without 30 days prior notice to Auxiliary Services. Any product lines found to be in direct competition to those provided by College concessions will not be accepted. Likewise, College will not allow competition from other vendors within the Arena providing like product lines of Vendor.
9. Non-assignability: Any deviation from above stated terms will require a new agreement to be signed by both parties. Agreement is only applicable between above stated parties. The Vendor is expressly prohibited from subletting or assigning any services included in this agreement without written permission of the College.
10. Indemnification: The Vendor agrees to indemnify, defend, hold harmless the College from and against any and all claims, losses, damage, and injuries to persons or property as a result of an act or omission of the Vendor or as a result of Vendor's operations or Vendor's goods or services sold.
11. Insurance: The College and its Board of Trustees, officers, employees, agents, and volunteers shall be included as an Additional Insured using ISO additional insured endorsement CG 20 26 or a substitute providing equivalent coverage. The College shall be listed as an Additional Insured on the Vendor's General Liability insurance policy together in the following way manner:

District Board of Trustees, Florida SouthWestern State College, Florida, its
trustees, employees, officers, and volunteers
Attn: Risk Manager
8099 College Parkway
Fort Myers, FL 33919

The Vendor's insurance coverage shall apply as primary insurance and non-contributory with respect to any other insurance or self-insurance programs available to the College. The Vendor must maintain not less than \$1,000,000 per occurrence bodily injury and property damage and \$2,000,000 general aggregate in Commercial

FLORIDA SOUTHWESTERN STATE COLLEGE

General Liability insurance coverage which also includes not less than \$2,000,000
Products/Completed Operations aggregate; Workers' Compensation statutory limits



TERMS OF SERVICE: Vendor may operate at any time in support of events held within the Arena. ~~There~~**The Company shall:**

~~...provide a description of work such as what equipment will be~~ no need for notice of participation or non-participation in support of events.

TERM AND TERMINATION: This agreement ~~purchased or what work will~~ remain in effect one year from the date it is fully executed by both parties until or unless either party requests termination. If both parties desire to extend the agreement beyond one year from commencement, a be done and the number of new agreement must be signed. jobs that Termination of agreement must be provided in writing no less than five (5) days prior to termination by Vendor. Termination of agreement will be provided in writing no less than 30 days prior to termination by FSW Auxiliary Services. Upon termination, Vendor has 30 days to remove sales stand from premises. Failure to do so will result- in discarding of sales stand.

~~This will enable the company to produce products or services for the climate technology sector. Provide description of how project will enable company to participate in a climate technology sector(s) utilizing language from the Climate Technology definition above.~~

The Company shall provide a project budget at the initiation of this MOU. The Company shall provide copies of all invoices and internal labor costs utilized in the performance of this agreement to the JBPU and shall provide access to JBPU to inspect the installed equipment and performance of that equipment. Documentation for project completion shall include changes to FTEs, facility production, sales, and/or examples of new products in the climate technology sector that can be manufactured by the company due to this agreement.

~~The JBPU shall:~~

~~Provide a onetime payment of \$2,000 at the execution of this agreement. Then, at the completion of the investment described by this agreement, the JBPU shall provide a onetime payment of up to \$17,000 after JBPU approval of the invoices, documentation, and attestation by the Company on the project completion and associated outcomes and after JBPU receives associated funding from NYSERDA. A combined amount of at least \$25,500 must be invested to receive the full combined \$19,000 and if invoices indicate the project cost less than \$25,500, the JBPU will pay the lessor of \$19,000 or 75% of the project cost.~~

~~Nothing herein shall make the BPU liable for any costs or payments to the Company or other parties beyond the passthrough of funds from NYSERDA pursuant to the terms and conditions of the NYSERDA Agreement.~~

~~Contacts:~~

~~The point of contact is:~~

~~Ellen Ditonto
editonto@jamestownbpu.com
716-640-1958~~

~~The JBPU's website is www.jamestownbpu.com~~

~~The Company's primary point of contact is:~~

~~Company contacts Name
Company contacts Email
Company contacts Phone~~

~~The Company's website is: Company website~~

~~The JBPU customer number is JBPU Customer Number (if Applicable)~~

~~Termination~~

FLORIDA SOUTHWESTERN STATE COLLEGE

Jason Dudley
Vice President IT & Digital Strategies/Chief
Information Officer

Date

REP PRINTED NAME AND TITLE
Vendor

Date

REP SIGNATURE

Either party can cancel this agreement with 30 days written notice.

Project Timeline

Describe the timeline of the project, include any primary milestones

Expected Completion Date: Click or tap here to enter text.

The total cost of the project is: Click or tap here to enter text.

The JBPU will provide the lessor of 75% or \$19,000 toward this project at the completion of the project.

The Company expects to increase employment by # of full-time employees FTE's.

Separate and Unique, the JBPU and Company enter this MOU while wishing to maintain their own separate and unique missions and mandates, and their own accountabilities. Unless specifically provided otherwise, the cooperation between the Participants as outlined in this MOU shall not be construed as a legal form of partnership or other type of legal entity or personality. Each Participant shall accept full and sole responsibility for all expenses incurred by itself relating to this MOU. Nothing in this MOU shall be construed as superseding or interfering in any way with any agreements or contracts entered among the Participants, either prior to or subsequent to the signing of this MOU. Nothing in this MOU shall be construed as an exclusive working relationship. The Participants specifically acknowledge that this MOU is not an obligation of funds, nor does it constitute a legally binding commitment by any Participant or create any rights to any third party.

We, the undersigned have read and agree with this MOU. Further, as the lead agency for the Retool WNY initiative, the JBPU has reviewed the proposed project and approves it.

By Person with authority to enter MOU

Company Name

Date

By Ellen Ditonto

Jamestown Board of Public Utilities

Date

